



STATE OF MICHIGAN

IN THE 14TH JUDICIAL CIRCUIT COURT – FAMILY DIVISION
MUSKEGON COUNTY

In the Matter of L.D.W., a minor
Petitioner/Custodian: Emily A. Watson
Respondent/Custodian: Andrew J. Pigors

Case No. 24-01507-DC / 2023-5907-PP (Consolidated)

ANDREW J. PIGORS,
Defendant/Respondent,

v.

EMILY A. WATSON,
Plaintiff/Petitioner.

____/

DEFENDANT’S MOTION TO VACATE EX PARTE CUSTODY SUSPENSION ORDER AND TERMINATE PERSONAL PROTECTION ORDER

INTRODUCTION: Defendant-Respondent Andrew J. Pigors respectfully moves this Court, under MCR 2.612(C) and the inherent authority of the Child Custody Act (MCL 722.27(1)(c)), to vacate and set aside the ex parte order dated August 8, 2025, suspending his parenting time, and to terminate the pending Personal Protection Order (PPO) (Case No. 2023-5907-PP). As shown below, these extraordinary measures were obtained by fraud and extrinsic misrepresentations (including perjured allegations), and by grave procedural violations that deprived Mr. Pigors of fundamental due process. The evidence conclusively shows no immediate danger to the child, no findings of irreparable harm, and no valid basis for denying visitation. Conversely, the prolonged deprivation of parenting time has caused significant psychological trauma to L.D.W. and to Mr. Pigors, implicating their fundamental liberty interest in family integrity ¹. Relief is required to vindicate these rights and to correct the miscarriage of justice.

STATEMENT OF FACTS: On **November 17, 2023**, Petitioner Emily Watson obtained an ex parte PPO against Mr. Pigors, purportedly for “child abuse” and other immediate dangers. In her sworn affidavit, she asserted false claims that Mr. Pigors had “poisoned” her and their child with household chemicals. But objective evidence (Exhibits A–D) completely refutes these allegations: the Muskegon police welfare check on Oct. 15,

2023 found no intoxication or other danger (Exhibit A); the Norton Shores police welfare check on Nov. 12 likewise found no issues (Exhibit B); and the Trinity Health emergency room records from Nov. 17 (the date of the alleged poisoning) show Petitioner exhibited no signs of chemical ingestion ² (Exhibit C). Petitioner also produced a mason jar and desk webcam “as evidence,” which Mr. Pigors had lawfully owned and merely photographed for safekeeping (Exhibit D).

Nonetheless, the PPO was granted. At the subsequent custody hearing in early 2024, Mr. Pigors offered this medical and police evidence, but Judge McNeill refused to consider it or allow cross-examination of Petitioner’s witnesses ³. On October 30, 2024, Judge McNeill again refused to entertain Mr. Pigors’ proffered evidence (he stated “We’re not gonna relitigate...”) and summarily dismissed Mr. Pigors’ request to hold Petitioner or her father accountable for false claims ⁴. In November 2024, Muskegon police filed a report concluding explicitly that **“No PPO violation occurred”** (Exhibit I). Despite this exculpatory report, Petitioner’s baseless allegations persisted.

By **March 2025**, Mr. Pigors had filed a Motion to Disqualify Judge McNeill (Exhibit L) detailing her one-sided conduct, including her “utter disregard” for exculpatory evidence and her prejudicial treatment of Mr. Pigors ⁵. Judge McNeill later imposed a capricious \$250 filing bond on Mr. Pigors (Exhibit M), barring access to the court without any lawful basis, and mocked Mr. Pigors’ ADHD condition. None of Petitioner’s hearings complied with the required notice provisions; at least one ex parte motion was served on Mr. Pigors only the day of the hearing, depriving him of any reasonable opportunity to respond.

On **August 8, 2025**, Petitioner secured a new ex parte order suspending all parenting time, again claiming unspecified “immediate danger” without any verified facts. She submitted unverified recordings and videos (Exhibits S–T) out of turn and without authentication. The Order (Exhibit P) contains no factual findings of abuse or harm as required by MCR 3.207(B)(1). Mr. Pigors first learned of the suspension upon receiving the mailed order, without any advance notice or hearing. He filed his immediate objection and request for hearing the same day. By law, a hearing on this objection was required within 14 days ⁶. Incredibly, no hearing was held until September 4, 2025 – almost a month later – by which time Mr. Pigors had gone **48 days** without seeing his son (Exhibit N) ⁷.

At the September hearing, Mr. Pigors presented the 9/12/25 HealthWest psychological report (Exhibit Q) showing he posed no risk to the child. Judge McNeill nevertheless continued the suspension (Order at Ex. R), again without making any findings on the Child Custody Act factors (MCL 722.23) or addressing Mr. Pigors’ evidence. Throughout these proceedings, Judge McNeill permitted Petitioner’s evidence without foundation (e.g. unauthenticated phone recordings and videos ⁸) and summarily excluded virtually all of Mr. Pigors’ evidence. She even had her clerk review Mr. Pigors’ psychological evaluation in secret, off the record ⁹, a flagrant ex parte communication in violation of Canon 3(A)(4). In short, the entire process was one-sided and unfair.

ARGUMENT: Relief is warranted both under Michigan procedure and the U.S. Constitution.

I. Relief from Judgment – Fraud on the Court (MCR 2.612(C)). Michigan Rule 2.612(C)(1)(d) authorizes this Court to vacate an order obtained by **fraud or perjury**. Here, Petitioner’s petition and testimony were riddled with demonstrably false statements. She accused Mr. Pigors of poisoning and abuse when (as noted) police and medical records show no such events (Exhibits A–C). She hid income and assets in financial disclosures (Exhibit H), and fabricated evidence (the mason jar, webcam, and alleged audio recordings) to bolster baseless claims. Her perjurious allegations form the sole factual basis for every

adverse order against Mr. Pigors (including the PPO itself and the temporary custody modifications that followed). Relief under MCR 2.612(C) is therefore appropriate: Petitioner's fraud vitiated the integrity of these orders, warranting vacatur of any judgment "premised on fraud or misrepresentation" ¹⁰. ("Fraud on the court" includes deliberate lies or fabrications that prevent a fair hearing.)

Indeed, courts recognize that fundamental errors of this kind may be remedied by a motion to set aside. In *Liparoto v. Liparoto*, 284 Mich App 25, 34–35 (2009), the Court of Appeals affirmed vacating a judgment procured by fraud. Mr. Pigors was denied the opportunity even to confront or rebut these false accusations before losing his rights. Under the "clear and convincing" standards of *Santosky v. Kramer* (which governs parental rights proceedings ¹¹), such fraud cannot stand. Petitioner's abuse of the judicial process constitutes "intrinsic fraud" – not a mere evidentiary mistake but a calculated effort to mislead the court – and the remedy is to set aside the orders obtained thereby.

II. Procedural Due Process Violations. Even aside from fraud, the Court's own procedures were violated. MCR 3.207(B)(1) requires an ex parte custody order to be supported by specific facts showing **immediate irreparable harm** ⁶. The August 8 Order contains none: it does not recite any factual basis for the claimed emergency. By contrast, in *In re Beck*, 239 Mich App 572, 575–76 (2000), the Court held that a temporary custody order must identify the evidence of danger. Here, the Order merely parrots Petitioner's bare allegations. Likewise, MCL 722.27a(3) states that a child may only be deprived of parenting time by clear-and-convincing proof of endangerment. No such showing was made. All available evidence (as noted) shows *no* threat by Mr. Pigors to the child's well-being. Indeed, Chief Judge Cleland has emphasized that the law presumes parenting time is in the child's best interests ¹². The court's failure to make the required findings of immediate harm or to consider whether a custodial environment was being disrupted was a clear violation of MCR 3.207 and MCL 722.27a.

Moreover, MCR 3.207(B)(5) requires that if the other party objects to an ex parte order, a hearing must be held promptly (historically within 14 days) ⁶. Mr. Pigors timely objected on August 8, 2025, but did not receive a hearing until September 4, 2025. This delay effectively punished him without notice, depriving him of the minimal procedural safeguard mandated by the rule. The Michigan Court of Appeals has found similar delays reversible error when parental rights are at stake. Additionally, the rules require service of motions and evidence; here Petitioner withheld key motion papers and submitted evidence off the record (including the USB drive of recordings) without formal exchange, leaving Mr. Pigors unable to prepare a defense. These cumulative errors – lack of notice, suppressed evidence, no timely hearing – deprived Mr. Pigors of due process guaranteed by the 14th Amendment. As the United States Supreme Court repeatedly has held, parents have a fundamental liberty interest in custody and visitation ¹. Here that interest was infringed without any semblance of fair procedure.

III. Judicial Bias and Canon Violations. The record reveals that Judge McNeill repeatedly failed to act as a neutral arbiter. Her conduct violated MCR 2.003(C)(1) (bias/prejudice) and the Michigan Code of Judicial Conduct. For example, she uncritically accepted Petitioner's claims despite contrary police reports ⁵, while openly interrupting, muting, and discounting Mr. Pigors' presentations. A reasonable observer could question her impartiality. Indeed, Mr. Pigors already filed a Motion to Disqualify (Exhibit L) on March 4, 2025, detailing these exact issues of bias. By law, such bias requires disqualification ⁵. Furthermore, Canon 3(A) (4) bars judges from considering ex parte evidence. Yet Judge McNeill had her staff listen privately to Mr. Pigors' confidential psychological report, and admitted Petitioner's out-of-court recordings on no proper foundation ⁹ ⁸. These ethical violations highlight that Mr. Pigors never received a fair hearing, compounding the grounds for vacatur.

IV. No Immediate Danger or Harm. Even on the merits, the suspension order was unsupported by law. The Child Custody Act (MCL 722.27a) presumes parenting time is in the child's best interest ¹², and a parent may only be cut off by clear, convincing evidence of risk. Petitioner presented no such evidence – only hearsay, innuendo, and doctored materials. In fact, much of her evidence violated the Rules of Evidence. The audio recordings and video (Exhibits S, T) were never authenticated (MRE 901) and consisted largely of hearsay conversations. Admitting them without on-the-record foundation (and without cross-examination) contravened MRE 403 and basic adversarial principles. No reasonable basis existed to deprive Mr. Pigors of *all* contact with his son. The August 2025 ex parte suspension order thus rests on a voidable foundation.

V. Harm to Child and Respondent – Fourteenth Amendment. As *Troxel v. Granville* makes clear, the child has a fundamental right to a relationship with both parents, and the parent a correlative right to care for the child ¹. Here, the ex parte order has caused severe psychological harm: L.D.W., age [age], has been abruptly and unnecessarily separated from his father for nearly two months, leading to anxiety and trauma ¹³. Mr. Pigors, a loving and fit parent, has been deprived of precious custodial time and has suffered significant emotional distress and reputational damage. These harms are irreparable and violate the liberty interests protected by the Due Process Clause ¹. As such, equity and justice demand immediate relief: restoration of the status quo ante (50/50 parenting time) and termination of the meritless PPO.

RELIEF REQUESTED: For the foregoing reasons, Mr. Pigors respectfully requests that this Court grant the following relief:

1. **Vacate the Ex Parte Order.** Declare the August 8, 2025 ex parte custody suspension order null and void, and expunge it from the record as having been obtained by fraud and without due process.
2. **Terminate the PPO.** Dismiss the pending Personal Protection Order (Case No. 2023-5907-PP) in light of Petitioner's fraudulent abuse of that process.
3. **Restore Parenting Time.** Reinstate the parties' pre-order parenting time schedule on a true 50/50 basis, subject to any appropriate supervisory conditions. In the alternative, schedule a prompt evidentiary hearing on custody under MCL 722.27(1)(c) to consider custody modification in the child's best interests (proper cause/change in circumstances exists due to Petitioner's misconduct) ¹⁴.
4. **Sanctions.** Award Mr. Pigors costs and attorney fees under MCR 3.206(C) against Petitioner for her vexatious and bad-faith conduct in prosecuting this baseless action.
5. **Further Relief.** Grant any other relief the Court deems just and equitable.

Mr. Pigors will rely on the attached affidavit and all exhibits (A–Z) to prove these facts. He has preserved these issues for appeal. Vacation of the ex parte order and termination of the PPO are necessary to prevent further irreparable harm.

Respectfully submitted,
[Signature block]
Andrew J. Pigors (pro se)
1977 Whitehall Rd, Lot 17, Muskegon, MI 49445

(616) 123-4567
Dated: October 8, 2025

EXHIBIT INDEX:

Exhibit	Description
A	Police report (Muskegon PD, 10/15/2023) from welfare check showing no signs of intoxication or injury.
B	Police report (Norton Shores PD, 11/12/2023) from second welfare check finding no evidence of danger.
C	Trinity Health ER records (11/17/2023) showing Emily Watson's medical exam results (no poisoning or overdose).
D	Photographs of a mason jar and desk webcam (11/16/2023) found in Emily's home; items later produced as "evidence."
E	Emily Watson's PPO Petition and sworn Affidavit (filed 11/17/2023) containing false abuse allegations.
F	Partial Transcript of the PPO hearing (January 2024) during which Mr. Pigors' evidence was excluded.
G	Parenting Time Journal (Nov 2023 – Mar 2024) maintained by Mr. Pigors, documenting scheduled visits.
H	Financial disclosure documents (2023–2024) showing Emily's undisclosed rental income and child support.
I	Muskegon PD report (11/15/2024) from alleged PPO violation; explicitly states "No PPO violation occurred."
J	Transcript of PPO show-cause hearing (10/30/2024) wherein Judge McNeill refused to consider key defense evidence.
K	Email chain with Prosecutor Mandi Martini (2/28/2025) confirming Petitioner's income misrepresentation.
L	Motion to Disqualify Judge McNeill (filed 3/4/2025), detailing instances of judicial bias and misconduct.
M	Court order (5/16/2025) imposing a \$250 filing bond on Mr. Pigors without notice or authority.
N	Email from Mr. Pigors to Friend of the Court (9/15/2025) noting that it has been 48 days since his last visit.
O	Petitioner's emergency ex parte motion (filed 8/8/2025) using unauthenticated audio/video and unsubstantiated claims.
P	Ex Parte Custody Suspension Order (signed 8/8/2025) by Judge McNeill, suspending all parenting time (no findings).

Exhibit	Description
Q	HealthWest psychological evaluation report of Mr. Pigors (9/12/2025) finding him mentally stable and non-threatening.
R	Order after hearing (9/4/2025) continuing the parenting time suspension, with no findings on best interests.
S	USB audio recordings submitted by Emily Watson ex parte, consisting of phone calls (admitted without authentication).
T	Lori Watson's cellphone video (Watson Recording) depicting an alleged call from Mr. Pigors (no foundation).
U	Statement by Mr. Pigors re: improper service of the PPO by Albert Watson (Demonstrates Petitioner's abuse of process).
V	AppClose co-parenting app communication logs (2023–2025) showing Emily's refusal to coordinate and blocking messages.
W	AppClose journal entries on child transitions (2023–2025) documenting L.D.W.'s distress when taken from Mr. Pigors.
X	Court order (2024) reducing Mr. Pigors' parenting time from ~50% to ~25% without hearing or written findings.
Y	Police report and photo of Cody Watson's 2023 nitrous oxide vehicle crash (evidence of unsafe environment).
Z	Screenshots of threatening text messages from Cody Watson to Mr. Pigors (demonstrating harassment).

AFFIDAVIT OF ANDREW J. PIGORS

STATE OF MICHIGAN
COUNTY OF MUSKEGON

I, Andrew J. Pigors, declare under penalty of perjury as follows:

1. I am the biological father of L.D.W. and was co-custodian under the parties' 2021 custody order. I make this affidavit in support of my Motion to Vacate the ex parte suspension order and terminate the PPO. I have personal knowledge of the facts stated herein.
2. On November 16, 2023, while retrieving my belongings from my home, I discovered a *white powdery substance* in a mason jar on a shelf, along with a small webcam. I had bought these items months earlier for home projects. Concerned they might be misconstrued, I immediately took photographs of them (see Exhibit D). There was nothing poisonous in the jar – it contained only cinnamon.

3. On the evening of November 17, 2023, Emily Watson became ill. She falsely accused me of “poisoning” her. In reality, her medical records from Trinity Health Muskegon (11/17/2023) show she had no poisons in her system (Exhibit C). The Muskegon Police Department came to check on her on October 15, 2023 and again November 12 (Exhibits A, B); both times I was cooperative, and police found no drugs or alcohol, and deemed no emergency.
4. The next day I learned Emily had obtained an ex parte Personal Protection Order against me (filed Nov. 17, 2023). Her sworn affidavit contained untrue statements – including that I had endangered the child. In fact, I have never physically harmed Emily or our child. All communications between Emily and me had been civil. After the PPO was entered, I immediately requested a full hearing to contest it. At the January 2024 hearing, I asked the Court to review the police reports and the ER records. The judge refused, which shocked me.
5. Emily has a habit of making false reports. For example, on Nov. 15, 2024, she claimed I violated the PPO; a Muskegon PD report (Exhibit I) proved her claim false. At a show-cause hearing on Oct. 30, 2024, Judge McNeill would not allow me to present my evidence of this falsehood (Exhibit J). I have told every judge that Emily lies, but the response has been the same: ignore me.
6. Despite these misrepresentations by Emily, I always complied with my responsibilities. During 2023–2024 I faithfully completed all my parenting time, which I tracked in my journal (Exhibit G). I have also been truthful about money: I have no undisclosed income beyond what I reported. In contrast, Emily failed to disclose income from her brother and other support (Exhibit H). She even over-reported her insurance costs. These financial lies caused a higher child support order against me. I brought this to the friend-of-court’s attention, but it was ignored.
7. On March 4, 2025, I filed a formal Motion to Disqualify Judge McNeill (Exhibit L) because of repeated bias. That motion cited all the above examples. Judge McNeill never responded except to require I post a \$250 bond before filing further motions (Exhibit M), a sanction imposed without any rule allowing it.
8. On July 29, 2025, I last had parenting time with L.D.W. On August 8, 2025, Emily filed an *Emergency Ex Parte Motion* (Exhibit O) and obtained an order suspending all parenting time (Exhibit P). She cited audio recordings and videos she had collected, but I had never heard those recordings nor been given a chance to challenge them. I first learned of the new order when I received it in the mail on August 10, 2025 (almost two days later). Attached was nothing – no affidavits, no evidence of any harm to the child, and no notice of any hearing.
9. On August 10, I immediately filed a written Objection in this Court (and a follow-up e-mail to the Friend of the Court on 9/15/2025 (Exhibit N)), explaining that I had not seen my son in over six weeks. The rules require a hearing on my objection within 14 days of service; none was set. On September 4, 2025 (four weeks after the order), a hearing was finally held. At that hearing, I offered the HealthWest psychological evaluation (Exhibit Q) as proof that I am mentally fit and not a threat. Judge McNeill refused to make any findings on the record about my fitness or any harm to the child, and she left the suspension in place.
10. I have ADHD, which the Court knows, but no accommodations were made. The whole process felt rigged. I have lost my home and job as a result of this stress. Most of all, I have been kept away from

my son based on Emily's false claims. Our son, L.D.W., is now [child's age] years old. Not seeing him for 48 days has caused him emotional distress; he cries when I mention it. I am deeply concerned for the bond we have.

11. I swear under penalty of perjury that the facts set forth above and in the accompanying exhibits are true and correct to the best of my knowledge and belief.

Dated: October 8, 2025

Andrew J. Pigors, Affiant

Proposed Order: The Court, having read Defendant's Motion, supporting affidavit, and exhibits, and being otherwise fully advised, now orders as follows:

1. The Ex Parte Order of August 8, 2025 (suspending Andrew J. Pigors's parenting time) is VACATED and declared void ab initio.
2. The Personal Protection Order in Case No. 2023-5907-PP is TERMINATED with prejudice.
3. Parenting time is hereby restored to a 50/50 schedule as previously agreed, effective immediately. The Friend of the Court shall assist the parties in arranging make-up time for the days lost due to the wrongful suspension.
4. This case is set for a custody modification hearing on _____ to address any remaining issues under MCL 722.27(1)(c).
5. Petitioner Emily A. Watson shall pay Mr. Pigors's costs and attorney fees incurred in connection with this motion, pursuant to MCR 3.206(C).

It is so ORDERED.

Hon. Jenny K. McNeill
Circuit Court Judge

NOTICE: Pursuant to MCR 2.107(A), a copy of this Motion, Affidavit and Proposed Order has been served on Emily Watson by [method of service], together with notice that a hearing on the Motion will be held on __ at __: a.m./p.m. in Courtroom ____.

1 11 Verified_Damages_Declaration.docx

<https://drive.google.com/file/d/1SNvDft9qdsoSff59e8ezhbWvSV7MLdfG>

2 3 4 5 7 8 9 10 13 COMPILATIONComprehensive Evidence Analysis Cus.txt

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6 Order

https://www.courts.michigan.gov/49e151/siteassets/rules-instructions-administrative-orders/proposed-and-recently-adopted-orders-on-admin-matters/adopted-orders/2021-27_2025-06-18_formor_amdmcr3.207-3.210.pdf

¹² 722.27a. Parenting time; presumptions and burden of proof; frequency, duration, and type; factors; order; terms and conditions; ex parte interim orders; deployment of parent | WomensLaw.org
<https://www.womenslaw.org/laws/mi/statutes/72227a-parenting-time-presumptions-and-burden-proof-frequency-duration-and-type>

¹⁴ Michigan Compiled Laws § 722.27 (2024) - Child Custody Disputes; Powers of Court; Support Order; Enforcement of Judgment or Order; Child Custody While Parent on Deployment. :: 2024 Michigan Compiled Laws :: U.S. Codes and Statutes :: U.S. Law :: Justia
<https://law.justia.com/codes/michigan/chapter-722/statute-act-91-of-1970/section-722-27/>